

25STCV23447 25STCV23447

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-09-11

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Case Number: 25STCV23447 Hearing Date: September 11, 2026 Dept: 529

MANSOURI LAW OFFICES VS RAMIN KHODADADI, ET AL.

DEMURRER

WITH MOTION TO STRIKE THE FIRST AMENDED COMPLAINT

Date of Hearing: September

11, 2026 Trial Date: None

set

Department: 529 Case No.: 25STCV23447

Moving

Party: Defendant Shahideh

Khodadadi

Responding

Party: Plaintiff Mansouri Law Offices

Meet

and Confer: SEE BELOW

BACKGROUND

On August 6, 2025, Mansouri Law Offices (Plaintiff) filed a complaint against Ramin Khodadadi and Shahideh Khodadadi (Defendant), alleging four causes of action: (1) breach of written contract; (2) breach of oral contract; (3) fraud; and (4) intentional interference with prospective economic advantage. Plaintiff alleges Defendant Ramin breached the terms of the

Attorney-Client Fee Agreement by failing to pay for the fees incurred under the Attorney-Client Fee Agreement.

On April 23, 2026, Plaintiff filed a First Amended Complaint, asserting causes of action for (1) Breach of Written Contract; (2) Intentional Misrepresentation/Promissory Fraud; (3) Intentional Interference with Contractual Relations; and (4) Intentional Interference with Prospective Economic Advantage.

[Tentative] Ruling

Defendant Shahideh Khodadadi's Demurrer to the First Amended Complaint is SUSTAINED WITH LEAVE TO AMEND; Defendant Shahideh Khodadadi's Motion to Strike the First Amended Complaint is GRANTED, IN PART.

discussion

Defendant Shahideh Khodadadi demurs to the complaint on the grounds the second cause of action for intentional misrepresentation, third cause of action for promissory fraud, and fourth cause of action for intentional interference with contractual relations fail to state facts sufficient to constitute a claim against Defendant and are uncertain.

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pled or implied factual allegations. (Ibid.) However, the court does not assume the truth of conclusions of law, only facts. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Meet and Confer

The court notes no declaration was submitted along with the demurrer and motion to strike indicating the parties met and conferred prior to

filing the motion. Pursuant to Code of Civil Procedure sections 430.41 and 435.5, the moving party shall file and serve with the demurrer and motion to strike a declaration stating that the parties could not reach an agreement or the party who filed the pleading failed to respond to the meet and confer efforts. The court admonishes Defendant to comply with all the applicable rules of the Code of Civil Procedure going forward.

Second Cause of Action

Defendant Khodadadi demurs to the second cause of action for intentional misrepresentation/promissory fraud on the grounds Plaintiff is attempting to enforce an unenforceable oral third-party-payor promise for attorney fees, barred by California Rules of Professional Conduct rule 1.8.6 and the fraud claim is not pleaded with the requisite specificity.

The elements of fraud are: "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184.) In California, fraud, including negligent misrepresentation, must be pled with specificity. (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184.) "The particularity demands that a plaintiff plead facts which show how, when, where, to whom, and by what means the representations were tendered." (Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1469.)

Defendant Khodadadi largely reprises the same arguments made in their prior demurrer, which the court previously rejected and found Plaintiff had adequately pleaded for the purposes of a demurrer. The court previously found the original complaint sufficiently alleged timing, intent to dispute charges, reliance, and damages, and granted leave to amend only because the business-disruption loss allegations were vague as to how the chargebacks produced approximately \$200,000 in losses. The FAC now alleges the damages include charged-back sums, chargeback-related expenses, loss of merchant processing privileges, and loss of three retainers totaling \$75,000 as well as lost future fees in an amount according to proof, presently estimated at \$225,000 to \$375,000. (FAC ¶60.) As for Defendant's claim oral agreements regarding third party payor's is unenforceable and must be in writing pursuant to Rules of Professional Conduct, Rule 1.8.6. That rule is designed to prevent conflicts of interest and protect the attorney-client relationship when third

parties pay for legal services, not to limit attorneys' ability to seek recourse for unpaid fees or fraudulent representations. The court notes Defendant also argues California law prohibits plaintiffs from recovering in tort for damages that are purely economic losses arising from contractual relationships. However, fraud is an exception to the economic loss rule.

The court further notes Defendant also demurs to the cause of action on the grounds it is uncertain and contradictory. Defendant contends the elements and proof requirements differ between intentional misrepresentation and promissory fraud yet Plaintiff conflates them. Moreover, Plaintiff alleges Defendant made false representations when authorizing the January 2025 charges and that she made separate false representations in June and July 2025 when disputing those charges. Defendant contends the complaint fails to clarify whether it is alleging two separate frauds or one continuous fraudulent scheme, and which specific misrepresentation forms the basis of the fraud claim. Defendant further contends the complaint improperly combines express and implied representations without specifying what was actually said versus what Plaintiff inferred.

The court finds the cause of action is not so uncertain Defendant could not respond. Plaintiff can allege both intentional misrepresentation and promissory fraud in the same cause of action under California's liberal pleading rules. The complaint sufficiently alleges on three separate occasions Defendant made false representations, which both arise from the same course of conduct.

Based on the foregoing, the demurrer is **OVERRULED**.

Third Cause of Action

Defendant demurs to the third cause of action for intentional interference with contractual relations on the grounds the alleged contractual relationship is insufficient, Shahideh's conduct was not designed to disrupt Plaintiff's merchant relationship, and no disruption of contract is properly alleged. It is true, as pointed out in the motion to strike, that plaintiff did not seek leave to add this cause of action and that it wasn't within the scope of the last minute order. Nonetheless, the court will address the demurrer on the merits in an effort to expedite this matter.

The elements for the tort of intentional interference with the performance of a contract are: "(1) a valid contract between plaintiff and another party; (2) defendant's knowledge of the contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage." (Asahi Kasei Pharma Corporation v. Actelion Ltd. (2013) 222 Cal.App.4th 945, 958.)

Defendant first argues the vague pleading Plaintiff had "a valid and existing contract and/or enforceable contractual relationship with its merchant payment processor, Merchant Services[]" fails to identify the specific contractual terms, the parties to the contract, the date of formation, or the nature of the contractual obligations.

The court agrees the allegations are insufficient as alleged. While the complaint identifies the contracting parties (plaintiff and Merchant Services) and describes the general nature of the contractual obligations (processing credit card payments for fees and compliance with rules), the complaint fails to identify when the contract was formed, whether it was written or oral, the duration, the specific preformation obligations and any terms that the Defendant knew about or interfered with.

Defendant next argues the complaint fails to allege facts showing that Shahideh's conduct was intentionally designed to disrupt Plaintiff's relationship with its payment processor. Defendant contends Plaintiff's allegations that Shahideh "knew her false chargebacks would foreseeably interfere with Plaintiff's ability to accept credit-card-funded retainers" because "that was the very payment system she had chosen to use and then attack[]" is conclusory. If Shahideh's purpose was to "attack" Plaintiff's payment system, why would she have authorized payments through that system in the first place? Defendant also argues no disruption of contract is properly alleged.

While the court has found the allegations insufficient, the court notes the plaintiff not need show that the defendant's primary purpose was to disrupt the contract; it is enough that the defendant knew interference was certain or substantially certain to occur as a result of its actions. (See Reeves v. Hanlon (2004) 33 Cal.4th 1140, 1148.) As for Plaintiff's allegations regarding disruption, the court finds those allegations could be sufficient as Plaintiff's account was purportedly rendered unusable for approximately one

week.

Based on the foregoing, the demurrer is SUSTAINED WITH LEAVE TO AMEND.

Fourth Cause of Action

Defendant's Notice provides they are demurring to the fourth cause of action for intentional interference with contractual relations. However, the court has already overruled the demurrer to the cause of action.

Causation and Damages

Defendant demurs to the complaint on the grounds the complaint's damages allegations are entirely speculative and insufficient to state a claim. Moreover, the complaint fails to allege adequate causation. Even if Plaintiff's merchant account was temporarily suspended, the complaint does not explain why these prospective clients could not have paid by other means (check, wire transfer, cash) or why they could not have waited one week until Plaintiff obtained a new merchant account.

The court disagrees. The FAC adequately pleads at least concrete, non-speculative loss. It alleges "reversed charge amounts of \$24,217.55" and "chargeback fees, processing penalties, reserve holds, and related out-of-pocket losses in an amount according to proof." (FAC ¶43.) Those direct losses are sufficient to satisfy the damage element. Moreover, the allegations are sufficient to show the conduct caused Plaintiff to lose merchant processing capability.

Motion to Strike

Defendant Shahideh Khodadadi move to strike Plaintiff's First Amended Complaint on the grounds the amended pleading exceeds the Court's Order regarding leave to amend and the punitive damages allegations lack support, are patently insufficient, and are not drawn in conformity with the laws of the State of California.

Defendant seeks to strike the new cause of action for intentional interference with contractual relations that was never part of the original Complaint and is not within the scope of the Court's order granting leave to amend. Defendant also seeks to strike Plaintiff's allegations related to

punitive damages on the grounds it is unsupported and insufficiently pled.

Code of Civil Procedure section 436 provides that the Court may, upon a motion made pursuant to Code of Civil Procedure section 435, or at any time within its discretion and upon terms it deems proper, “strike out any irrelevant, false, or improper matter inserted in any pleading” and/or “strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (CCP § 436(a).) In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike, all parts in their context, and assume their truth. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

First, the court agrees the third cause of action was not within the scope of the order granting leave to amend. (See Harris v. Wachovia Mortg., FSB (2011) 185 Cal.App.4th 1018.) Nonetheless, as stated above, in an effort to conserve court and party resources, the court will deny the motion to strike on these grounds and address the demurrer to this cause on the merits.

As for the punitive damages allegations, the court finds the allegations sufficient for the purposes of a demurrer. California Civil Code section 3294 authorizes the recovery of punitive damages in non-contract cases where “the defendant has been guilty of oppression, fraud, or malice” (Civ. Code § 3294(a).) A claim for punitive damages may not be based on conclusory allegations of oppression, fraud or malice, but instead must be based on factual allegations which support such a conclusion. (See Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1041-1042.)

The complaint now alleges Shahideh authorized charges, waited until after the trial outcome, submitted chargebacks, falsely claimed she had hired Plaintiff and cancelled services, and used the banking dispute process to claw back payments after services had been rendered in order to avoid payment while shifting the loss to Plaintiff. These allegations are sufficient to show Defendant intentionally misrepresented material facts regarding the services rendered as well as an inference of despicable conduct carried on with willful and conscious disregard of Plaintiff's rights, not just an intentional breach.